

25SMCV05873 25SMCV05873

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Case Number: 25SMCV05873 Hearing Date: September 17, 2026 Dept: P

Tentative

Ruling

Helmsman

Management Service v. Alexandra Latimer, et al., Case No. 25SMCV05873

Defendant's

Demurrer

Hearing

Date: September 17, 2026

Background

This is a subrogation or contribution action arising from an underinsured or uninsured motorist claim. Plaintiff Helmsman Management Service, TPA for James River Insurance, ("Plaintiff") sues Defendants Alexandra Latimer ("Latimer") and American Family Insurance for equitable contribution. Plaintiff alleges that their insured's employee, Greg Wilson, was injured when Latimer rear-ended him on November 15, 2019. (First Amended Complaint, ¶¶ 12-13.)

On

November 7, 2025, Plaintiff filed the initial complaint.

On January

12, 2026, Latimer filed a demurrer.

On May 1, 2026, Plaintiff filed the operative pleading, the First Amended Complaint ("FAC"), mooted Latimer's demurrer.

On June 17, 2026, Latimer filed this demurrer. On September 8, 2026, Plaintiff filed opposition. On September 10, 2026, Latimer replied.

Latimer argues that Plaintiff's FAC fails to state a claim for equitable contribution because it does not allege the terms of the subrogation or insurance agreement it purports to enforce. (Demurrer, p. 5.) Latimer also argues that the complaint is uncertain because it does not allege the existence of a subrogation agreement or the relevant underinsured or uninsured motorist provisions. (Id. at p. 6) Latimer next argues that Plaintiff cannot claim equitable contribution against alleged tortfeasors who settled with the injured party for payments made under underinsured motorist coverage in California under *Home Insurance Co. v. Zurich Insurance Co.*, (2002) 96 Cal.App.4th 17. (Id. at pp. 7-9.) Latimer also argues that Plaintiff is barred from seeking equitable contribution because it made a voluntary payment to Uber's employee. (Id. at p. 10.) Next, Latimer argues that Plaintiff had no right to equitable contribution because Defendants' insurance coverage did not cover the same risks at the same level. (Id. at p. 11.) Finally, Latimer argues that the statute of limitations for actions for property damage has run on Plaintiff's claim. (Id. at p. 12.)

In opposition, Plaintiff asserts that the complaint states a claim for equitable subrogation and that the demurrer makes evidentiary arguments that are not proper on a demurrer. (Opposition, pp. 3-4.)

In reply, Latimer argues that Plaintiff's late-filed opposition should not be considered and argues that Plaintiff's silence concedes five of the six grounds for the demurrer, including the statute of limitations, the release, voluntary payment, no subrogation for underinsured motorist payments, and that equitable contribution requires that the insurance companies have the same insured. Latimer also argues that Plaintiff claims that it seeks equitable subrogation in opposition to this demurrer but pleads equitable contribution. Latimer contends that the complaint does not state a claim under either theory. (Id. at pp.

304.)

Demurrer

In a

demurrer proceeding, the defects in the complaint must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a

demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Before

filing a demurrer, parties must meet and confer in person or by phone. (Code Civ. Proc. § 430.41.)

Discussion

Meet

and Confer

Latimer's

attorney attempted to meet and confer with Plaintiff's counsel before filing this demurrer, but Plaintiff's counsel was unresponsive. (Slack Decl., ¶ 8.) Although counsel's non-responsiveness is frustrating, the failure to meet and confer is not grounds for overruling a demurrer.

Equitable

Subrogation

Plaintiff

alleges that it issued Uber a policy that included uninsured motorist coverage. (FAC, ¶ 11.) Plaintiff alleges that Greg Wilson, Uber's employee, sued Plaintiff and Plaintiff ultimately settled for \$15,000, but that Wilson was damaged in the amount of \$350,000. (Id. at ¶¶ 13-15.) Plaintiff alleges that after settling that lawsuit, it discovered that Latimer had insurance through Defendant American Family Insurance. (Id. at ¶ 11.) Plaintiff alleges that it paid a loss for which Defendants are primarily liable and thus seeks subrogation. (Id. at ¶ 20.)

In Home

Ins. Co. v. Zurich Ins. Co., the Court of Appeal found that an uninsured motorist insurer could not seek subrogation against the uninsured or underinsured motorist's insurance provider under Ins. Code § 11580.2. "As an underinsured motorist insurer, Home has no right of subrogation. (Hartford Fire Ins. Co. v. Macri (1992) 4 Cal.4th 318, 328, 14 Cal.Rptr.2d 813, 842 P.2d 112.) Home's interests are fully protected and limited to the right of reimbursement or credit for the amount the insured receives from the underinsured tortfeasor or his insurer. (Ins.Code, § 11580.2, subd. (p)(5).) Further, Home had no legal obligation to pay underinsured motorist benefits until Pinasco and Main received payment of the limits of Canfield's policy. (Ins.Code, § 11580.2, subd. (p)(3).)" (Home Ins. Co. v. Zurich Ins. Co. (2002) 96 Cal.App.4th 17, 27.)

This case

is virtually identical. Plaintiff does not attempt to distinguish this case from Home in opposition to this motion. Latimer's demurrer to Plaintiff's subrogation claim is sustained.

Equitable

Contribution

It is not

clear if Plaintiff seeks equitable subrogation or equitable contribution. Unlike equitable subrogation, equitable contribution does not flow from a contract. "In the insurance context, the right to contribution arises when several insurers are obligated to indemnify or defend the same loss or claim, and one insurer

has paid more than its share of the loss or defended the action without any participation by the others. Where multiple insurance carriers insure the same insured and cover the same risk, each insurer has independent standing to assert a cause of action against its coinsurers for equitable contribution when it has undertaken the defense or indemnification of the common insured.” (Fireman’s Fund Ins. Co. v. Maryland Casualty Co. (1998) 65 Cal.App.4th 1279, 1293.) Here, Plaintiff alleges that it insured Uber and American Family Insurance insured Latimer. Therefore, Plaintiff does not state a claim for equitable contribution because it does not allege that the parties have the same insured. Latimer’s demurrer to Plaintiff’s equitable contribution claim is sustained.

Leave
to Amend

Plaintiff requests
leave to amend in passing but does not make any showing that there is a reasonable possibility that it can amend the complaint to state a claim. (See Opposition, p. 4.) It is Plaintiff’s burden to make such a showing. (Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) Plaintiff has not met its burden. Leave to amend is denied.

Conclusion

Latimer’s
Demurrer is SUSTAINED without leave to amend.